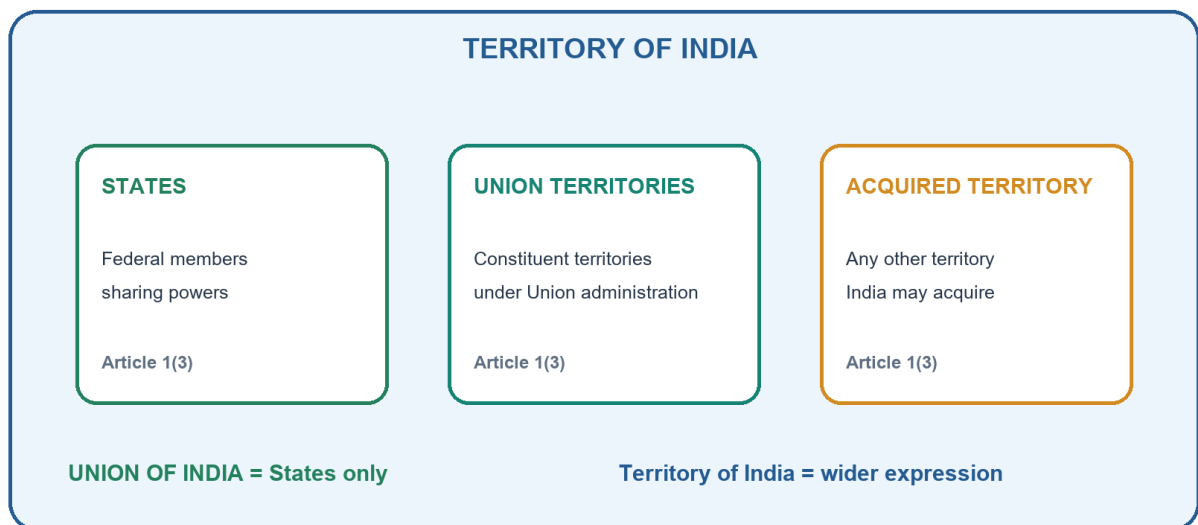


COMPLETE LEARNING SESSION

UPSC complete learning session | Foundation to advanced | Concepts, evidence, practice and answer writing

POLITY 05 | UNION AND TERRITORY

The territorial architecture of India



Original deterministic study visual; labels are explanatory, not textual quotations.

Source order: repository knowledge -> official current linkage -> clearly marked analysis. No fabricated PYQs or statistics.

Polity 05 - Union and Territory - Complete Topic Package

Subject: Indian Polity | **Topic:** 05 | **Export date:** 2026-08-15 **Approval:** false - awaiting explicit user approval. **Tag rule:** [FACT] source-grounded statement; [ANALYSIS] evidence-led synthesis; [LIMIT] ownership or status caution.

Package method, counts, provenance and scope boundary

- Source order followed: repository Core owner Polity/basic/Union-and-Territory.md -> optional distinct Advanced companion Polity/advanced/05_Union-and-Territory.md -> local OCR-searchable M. Laxmikanth and audited PYQ ledgers -> authoritative live current-law sources -> Qdrant not used.
- Constitutional control: official Legislative Department text of Articles 1-4.
- Judgment control: *In Re Berubari Union* (1960), the Supreme Court's 1969 boundary-settlement distinction, and official *In Re Article 370*, 2023 INSC 1058.
- Current control checked on 15 August 2026: MHA still identifies J&K as a UT with Legislature and Ladakh as a UT without Legislature. PIB officially recorded Ladakh Statehood/Sixth-Schedule demands in September 2025 and continuing safeguard dialogue in March 2026; neither release changed territorial status.
- PYQ control: the local official 2025 Prelims Set A paper and official key directly verify Q52 and answer **C (all three)**. The solved Mains PYQs are neutral renderings from the audited routing ledger: **2018 GS-I Q12** and **2022 GS-I Q11**.
- Practice counts: 3 relevant solved PYQs; 28 original hard MCQs; 8 remedials; 6 original solved Mains questions.
- Visual count: 12 original compact PNGs. All are schematics, not legal maps.
- [LIMIT] This package owns Articles 1-4, integration, reorganisation, cession and present Statehood debates. Full administration under Articles 239-241, Delhi LG/services and detailed J&K Assembly powers belong to **Polity 25 - Union Territories**. Detailed Article 370 doctrine belongs to **Polity 22 - Special Provisions**.

Concise source note

- Constitution of India, Part I: Legislative Department.
- *In Re Article 370*, 2023 INSC 1058: official Supreme Court PDF.
- Current J&K/Ladakh legal description: MHA Jammu Kashmir and Ladakh Affairs.
- LBA figures and implementation: MEA enclave exchange note.
- Ladakh demand/status controls: PIB 24 Sep 2025 and PIB 14 Mar 2026.

Roadmap

Stage	Coverage	Exam use
Foundation	Article 1, India/Union/Territory, Articles 2-4	Close-option elimination
Core	Article 3 procedure, State-UT nuance, Article 4 effect	Prelims + GS-II
Historical	Integration, 1950 map, linguistic commissions, complete chronology	Prelims + post-Independence GS-I
Applied law	Berubari, Ninth Amendment, boundary settlement, 100th Amendment	Case-based answers
Current	J&K 2019 as Article 3 illustration, restoration status, smaller-State demands	Current-law accuracy
Optional Advanced	Federal critique, democratic legitimacy, criteria for new States	15/20-mark depth

PART I - Complete multi-subtopic learning session

01. Constitutional conception: why Article 1 says 'Union of States'

POLITY 05 | UNION AND TERRITORY

Articles 1-4: four jobs, one architecture

ARTICLE 1

Name + Union + territory

India, that is Bharat; States, UTs, acquired territory

ARTICLE 2

Admit / establish

New States not already within the Union

ARTICLE 3

Internal reorganisation

Form, enlarge, diminish, rename or alter boundaries

ARTICLE 4

Legal consequences

Schedules + incidental matters; outside Article 368

Articles 1-4 in one architecture: name, territory, new States, reorganisation and legal effect.

[FACT] Article 1 chooses the expression "Union of States", not "Federation of States". The framers wanted the Constitution to show that India is federal in structure, but not the product of a treaty among pre-existing sovereign units.

[FACT] Ambedkar's two-point explanation remains the best exam opening: the Indian federation was not formed by agreement among the States, and no State has a right to secede. The Union is therefore indestructible even though State boundaries are not.

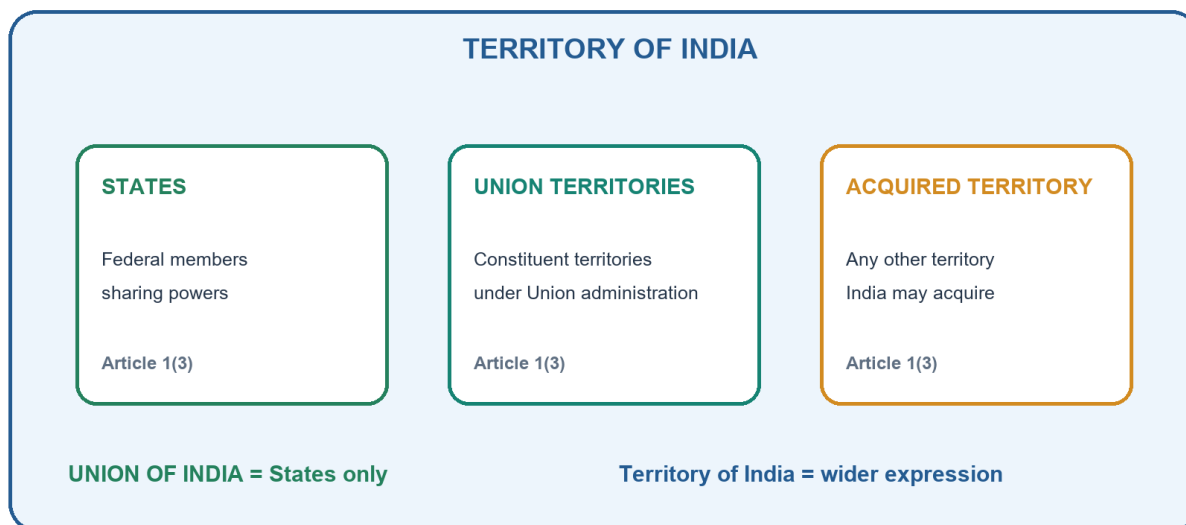
[ANALYSIS] UPSC rewards the design inference. India is not unitary because powers are constitutionally distributed; but it is not a compact federation either because Parliament can redraw the internal map under Article 3 and because the States are constitutionally derived units.

[LIMIT] "Indestructible Union of destructible States" is a powerful analytical formula, not the literal text of Article 1. Use it to explain the territorial chapter; do not present it as a quotation from the Constitution.

UPSC trap: "Union of States" means a unitary State. Correct approach: it means a federation with a centralising, anti-secession design.

02. Articles 1 to 4 clause-by-clause: the constitutional architecture of territory

The territorial architecture of India



Territory of India is wider than Union of India: States are federal members; Union Territories and acquired territories are not.

Provision	Exact constitutional move	High-yield implication
Article 1(1)	India, that is Bharat, shall be a Union of States	Name of the country + form of polity
Article 1(2)	The States and the territories thereof shall be as specified in the First Schedule	Territorial listing is constitutional, not merely administrative
Article 1(3)	The territory of India shall comprise (a) territories of the States, (b) Union Territories specified in the First Schedule, and (c) such other territories as may be acquired	Explains the difference between Union of India and Territory of India
Article 2	Parliament may by law admit into the Union, or establish, new States on such terms and conditions as it thinks fit	External admission or establishment
Article 3(a)-(e)	Parliament may form a new State, increase area, diminish area, alter boundaries, or alter the name of any State	Internal reorganisation
Article 4(1)	Laws under Articles 2 and 3 may amend the First and Fourth Schedules and include supplemental, incidental and consequential provisions	Representation and transitional machinery travel with the same law
Article 4(2)	Such a law is not deemed an amendment for the purposes of Article 368	Internal reorganisation is ordinarily outside the amendment procedure

[FACT] Article 1(1) also captures the famous naming compromise: "India" and "Bharat" were both politically resonant, so the Constitution retained both.

[FACT] Article 1(2) makes the First Schedule central. The schedule is the formal list of State and Union Territory names and territorial extent. When units are renamed, merged, reorganised or ceded, the schedule changes.

[FACT] Article 1(3) creates the key taxonomic distinction. The Union of India means the States as federal members. The Territory of India is wider: it includes the States, the Union Territories and any territories that India may acquire.

[ANALYSIS] That difference is not pedantic. It explains why Union Territories belong to India without being equal federal partners and why acquired territory can enter Indian sovereignty before its internal constitutional location is finally settled.

03. Article 2 and Article 3 are not the same power

[FACT] Article 2 is conceptually about entry from outside the existing Union: Parliament may admit or establish new States on terms it thinks fit. Article 3 is conceptually about internal readjustment among units already inside the Union.

Article 3 limb	Exact operation	Typical exam use
3(a)	Form a new State by separating territory from any State, by uniting two or more States or parts of States, or by uniting any territory to a part of any State	Bifurcation, merger, combination
3(b)	Increase the area of any State	Adjustment / addition
3(c)	Diminish the area of any State	Carving out territory
3(d)	Alter the boundaries of any State	Boundary revision
3(e)	Alter the name of any State	Renaming

[FACT] Two explanations matter. Explanation I says that for clauses (a) to (e), "State" includes a Union Territory, but in the proviso it does not. Explanation II says that clause (a) includes the power to form a new State or Union Territory by uniting a part of any State or Union Territory to any other State or Union Territory.

[ANALYSIS] This is why the common formula "Article 3 only means State bifurcation" is too narrow. It also reaches boundary changes, name changes, and UT-linked combinations.

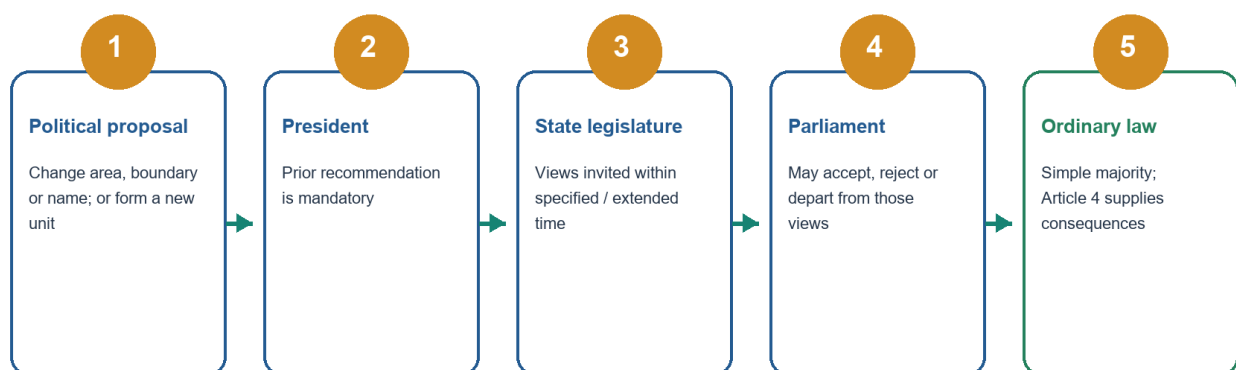
[LIMIT] Indian constitutional practice has used Article 3 far more often than Article 2. Do not force uncertain examples of Article 2 when the safer conceptual point is the difference between external admission/establishment and internal reorganisation.

UPSC trap: Articles 2 and 3 both create new States, so the distinction is trivial. Correct approach: the distinction controls whether the Constitution is dealing with an outsider's entry or an insider's reorganisation.

04. Article 3 procedure: consultation without consent

POLITY 05 | UNION AND TERRITORY

Article 3 bill: consultation is not consent



STATE HAS A VOICE, NOT A VETO

No state consent requirement; no fresh reference for every parliamentary amendment.

Article 3 procedure in sequence: recommendation, reference, views, parliamentary decision and Article 4 follow-through.

[FACT] Article 3 does not permit a free-floating private or ordinary parliamentary initiative. A bill for State reorganisation can be introduced only on the prior recommendation of the President.

[FACT] Before making that recommendation, the President refers the bill to the legislature of the affected State for expressing its views within the time specified in the reference, or within any extended time the President allows.

[FACT] Those views are not binding. Parliament may accept, modify or reject them. It is also not necessary to make a fresh reference to the State legislature for every later amendment adopted in Parliament.

[FACT] In the case of a Union Territory, the constitutional proviso does not require a comparable legislature-reference step.

[ANALYSIS] The constitutional formula is consultation without consent. This is the single most important high-yield distinction in the chapter. Students lose marks when they treat the State legislature's opinion as a veto.

[ANALYSIS] Compared with compact federations such as the United States, the Indian design clearly privileges national continuity and parliamentary flexibility over sub-national entrenchment. That is why Article 3 is one of the clearest textual proofs of the Constitution's strong-Centre tilt.

[LIMIT] The existence of consultation still matters. The President's reference is not empty ritual: it constitutionalises notice, invites a formal record of regional objections, and gives Parliament a consultative file even though it does not create a State veto.

UPSC trap: State consent is mandatory. Correct approach: President's recommendation and legislature-reference for views are mandatory; State consent is not.

05. Article 4: supplemental, incidental and consequential provisions - and why this is not Article 368

[FACT] Article 4(1) allows a law under Articles 2 or 3 to do more than just redraw territory. It may amend the First Schedule and the Fourth Schedule and include supplemental, incidental and consequential provisions, including adjustments of representation in Parliament and in the legislature or legislatures of the affected States.

[FACT] Article 4(2) then declares that such a law shall not be deemed an amendment of the Constitution for the purposes of Article 368. The law therefore passes by ordinary majority through the ordinary legislative process.

Issue	Article 3 + Article 4 law	Article 368 amendment
Internal reorganisation of States or UTs	Yes	Not normally required
First Schedule / Fourth Schedule changes flowing from reorganisation	Yes	Built into Article 4
Cession of accepted Indian territory to a foreign State	No	Yes, after Berubari
Majority route	Ordinary majority	Special majority, plus state ratification where applicable

[ANALYSIS] Article 4 is the constitutional lubricant of reorganisation. Without it, every merger, bifurcation, renaming or representation adjustment would become needlessly cumbersome.

[LIMIT] Article 4 does not erase the sovereignty line. It simplifies internal territorial change; it does not authorise transfer of Indian territory to a foreign sovereign.

UPSC trap: every territorial change is a constitutional amendment. Correct approach: internal reorganisation ordinarily travels through Article 3 read with Article 4; cession does not.

06. The First Schedule as a living territorial ledger

[FACT] The First Schedule is the Constitution's territorial ledger. It names the States and Union Territories and records their territorial extent. Whenever a unit is created, renamed, merged, split or ceded, the schedule must reflect that shift.

[FACT] That is why different kinds of legal instruments change the same schedule. Article 3 read with Article 4 changes it for internal reorganisation; the Ninth Amendment changed it for Berubari-related cession; the 100th Amendment changed it for the India-Bangladesh Land Boundary Agreement; the 2019 and 2020 laws changed it for the J&K-Ladakh split and the DNH-Daman and Diu merger.

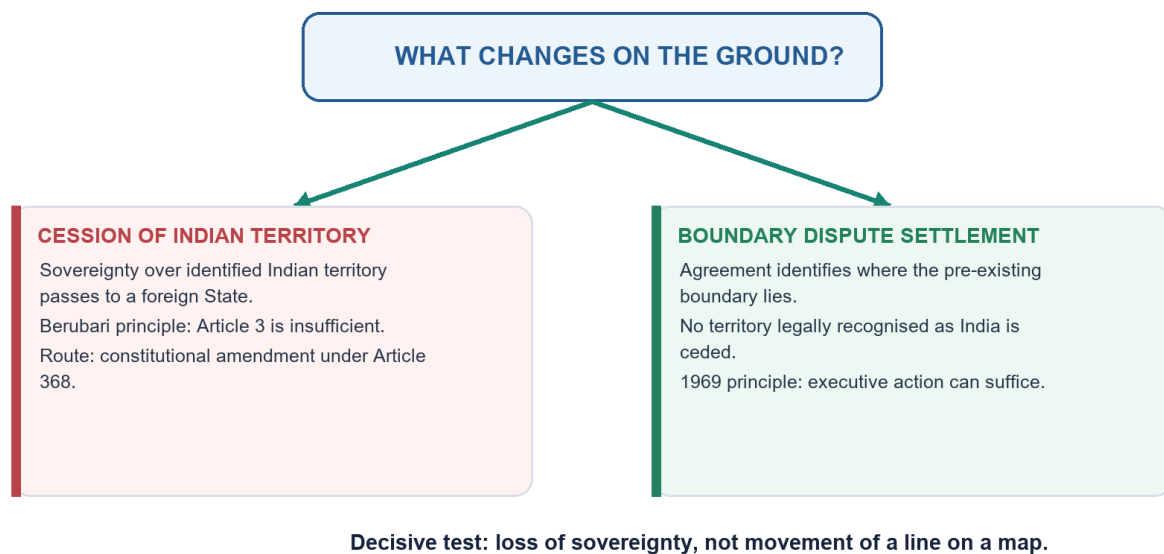
[FACT] As of 15 Aug 2026, the operational constitutional count is 28 States and 8 Union Territories.

[ANALYSIS] The schedule's exam value is twofold: it anchors territorial facts, and it reminds you that territorial questions are constitutional-structural, not merely map-trivia questions.

07. Acquisition, cession and boundary settlement: Berubari, the 1969 distinction and the 100th Amendment

POLITY 05 | UNION AND TERRITORY

Does a territorial settlement require Article 368?



Three legal routes compared: internal reorganisation, cession, and boundary ascertainment.

[FACT] Article 1(3)(c) gives the Constitution capacity to receive acquired territory but does not itself prescribe a mode. Traditional polity texts list cession, purchase, gift, lease-linked transfer, occupation, conquest or subjugation, and plebiscitary transfer.

[LIMIT] A modern answer must qualify the historical list: contemporary international law and the UN Charter sharply constrain acquisition by force.

[FACT] The hard constitutional question is not acquisition alone, but the legal route for parting with territory. In Berubari Union (1960), a Presidential reference under Article 143 arose after a proposal to transfer part of the Berubari area in West Bengal to Pakistan.

[FACT] The Supreme Court held that Parliament's power under Article 3 to diminish the area of a State does not include cession of Indian territory to a foreign country. The consequence was the Constitution (Ninth Amendment) Act, 1960, which supplied the constitutional route for implementing the agreement.

[LIMIT] Avoid saying that the Ninth Amendment by itself completed every contemplated East Pakistan transfer. Official background to the later LBA records that the relevant portion was not operationalised at that stage amid litigation and political developments.

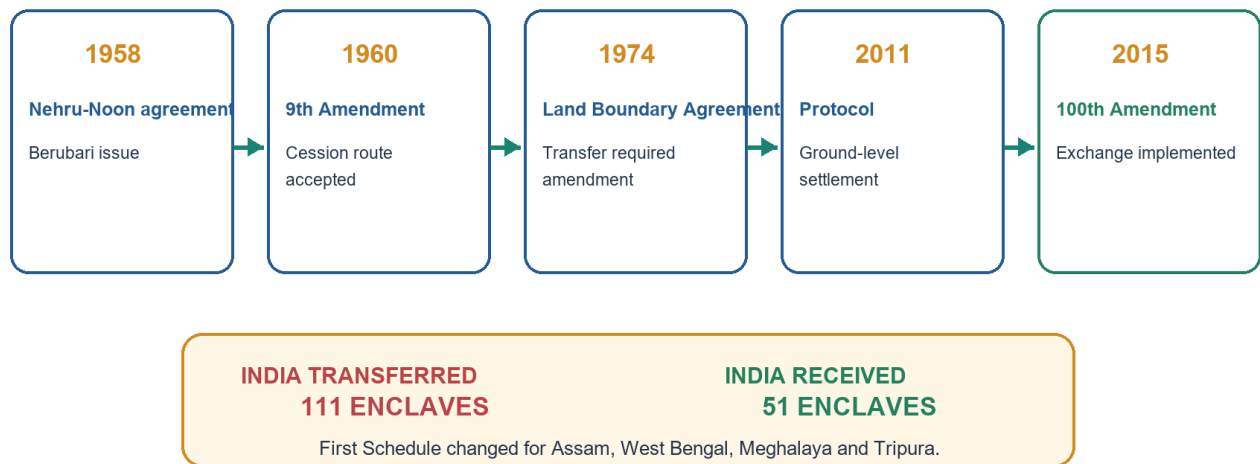
[FACT] In a later 1969 ruling, the Supreme Court distinguished a boundary settlement from cession: when the legal issue is ascertainment or implementation of an existing boundary and not the transfer of accepted Indian territory, Article 368 is not automatically triggered.

[FACT] The 100th Amendment Act, 2015 later implemented the India-Bangladesh Land Boundary Agreement and its protocol. It exchanged 111 enclaves to Bangladesh and 51 enclaves to India, addressed adverse possessions, and

modified the First Schedule entries for Assam, West Bengal, Meghalaya and Tripura.

POLITY 05 | UNION AND TERRITORY

India-Bangladesh Land Boundary Agreement: constitutional route



The constitutional route from Berubari to the India-Bangladesh Land Boundary Agreement.

[FACT] The MEA records that the enclave exchange took effect from midnight of 31 July 2015.

[ANALYSIS] The decisive constitutional line is therefore not simply domestic versus international, but internal readjustment versus loss of sovereign territory. That is the line Berubari fixed.

[LIMIT] Do not over-extend the 1969 principle. It concerns boundary ascertainment and implementation, not a general licence to transfer accepted Indian territory without constitutional amendment.

UPSC trap: any reduction of a State's area equals cession. Correct approach: internal diminution under Article 3 is not the same as cession to a foreign sovereign.

08. State of West Bengal v Union of India: why the case matters even though it is not an Article 3 case

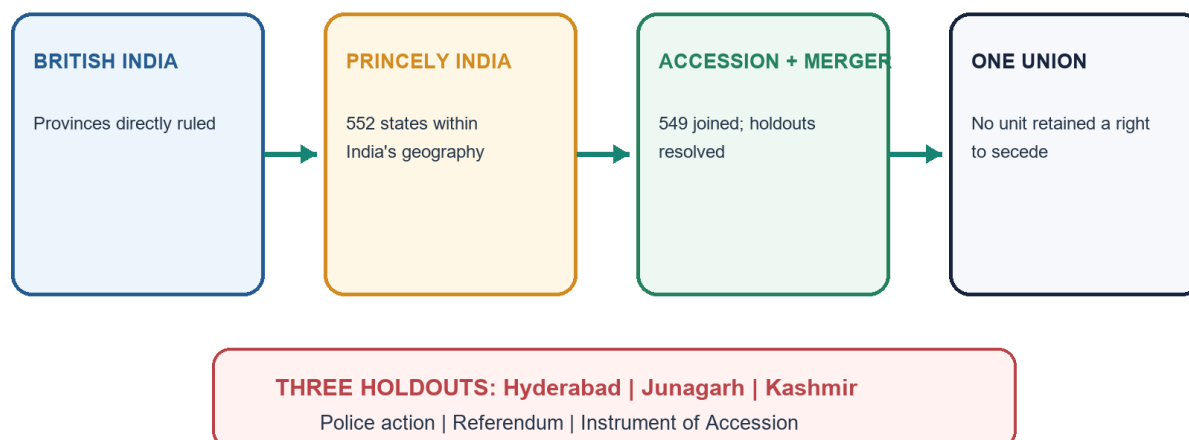
[FACT] State of West Bengal v Union of India (1963) concerned Parliament's competence to acquire State property under the Coal Bearing Areas (Acquisition and Development) Act. The majority upheld Parliament's competence.

[FACT] The case matters for this chapter because it treated the Indian Constitution as not "traditionally federal" in the classical treaty-compact sense. States were not treated as sovereign entities possessing a residual inviolable domain against the Union.

[ANALYSIS] Use the case for the strong-Centre thesis, especially when you need to explain why the Union can constitutionally outweigh States in questions about property, territorial flexibility or structural supremacy.

[LIMIT] Do not misuse the case. West Bengal is not the governing authority for cession or the Article 3 procedure. Berubari and the Article 3 text do that work.

09. Integration of princely States and the transitional 1950 map

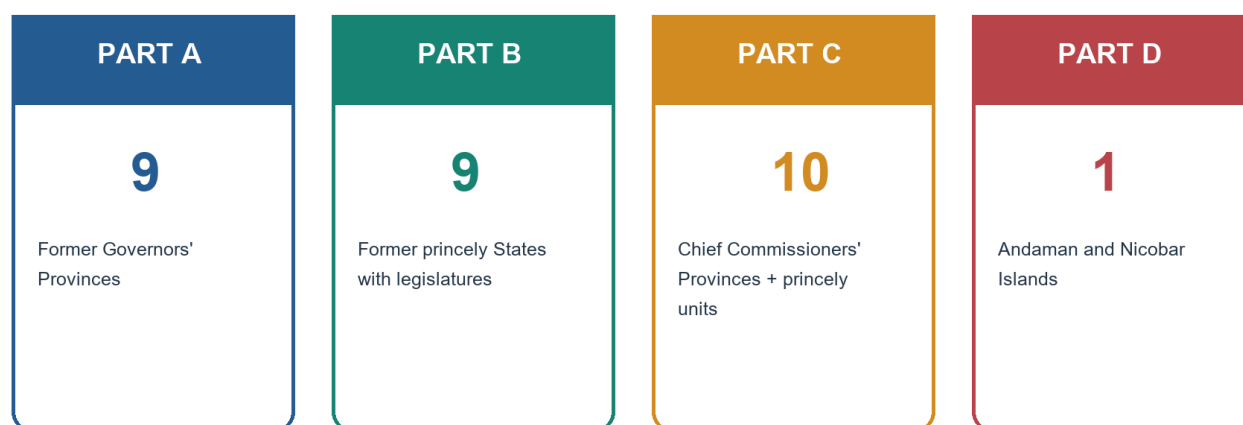
1947 integration: sovereignty consolidated before reorganisation

From accession to one Union: integration preceded territorial rationalisation.

[FACT] Standard polity sources refer to 552 princely States at Independence. The advanced repository note records that 549 joined India, while Hyderabad, Junagadh and Kashmir became the best-known difficult cases.

[FACT] These three hard cases were resolved through different constitutional-political routes: Junagadh through plebiscitary confirmation after accession controversy, Hyderabad through police action, and Kashmir through accession under invasion conditions.

[FACT] The Constitution's first map in 1950 was therefore transitional. India was divided into Part A, Part B, Part C and Part D units: former Governors' provinces, former princely States or unions, centrally administered units, and the Andaman and Nicobar Islands respectively.

The Constitution in 1950: four-fold territorial classification

1956 removed this hierarchy -> 14 States + 6 Union Territories

The four-fold constitutional classification in 1950.

Category	Number	Units
Part A	9	Assam, Bihar, Bombay, Madhya Pradesh, Madras, Orissa, Punjab, United Provinces, West Bengal
Part B	9	Hyderabad, Jammu and Kashmir, Madhya Bharat, Mysore, Patiala and East Punjab States Union, Rajasthan, Saurashtra, Travancore-Cochin, Vindhya Pradesh
Part C	10	Ajmer, Bhopal, Bilaspur, Cooch Behar, Coorg, Delhi, Himachal Pradesh, Kutch, Manipur, Tripura
Part D	1	Andaman and Nicobar Islands

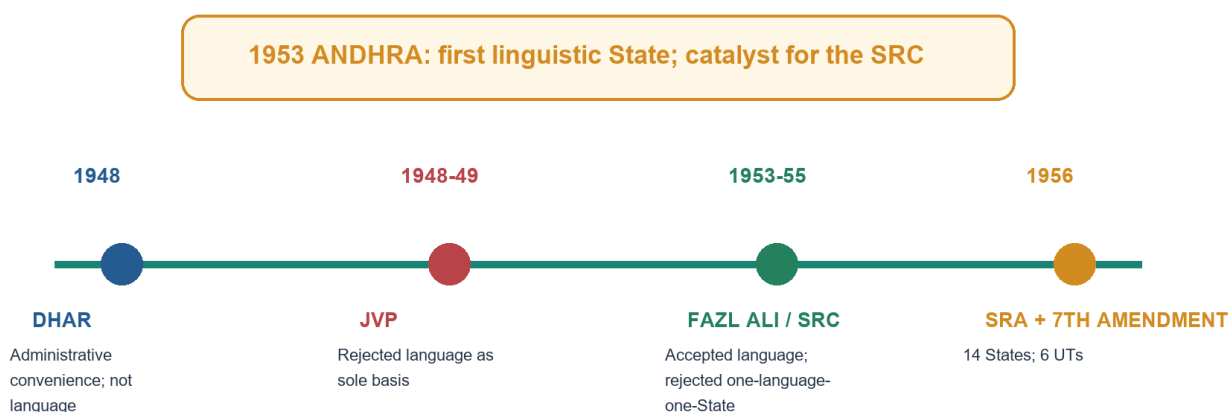
[ANALYSIS] This arrangement shows that Article 1 provided a permanent constitutional shell, but the internal territorial map remained open to revision. The territorial chapter was designed to stabilise sovereignty first and optimise the map later.

UPSC traps: Manipur and Tripura were Part C; Hyderabad was Part B; Bombay was Part A; Andaman and Nicobar Islands alone formed Part D.

10. Linguistic reorganisation: Dhar, JVP, Andhra and the Fazl Ali / SRC settlement

POLITY 05 | UNION AND TERRITORY

From caution to linguistic reorganisation



From initial caution to qualified linguistic reorganisation.

[FACT] The Dhar Commission (1948) recommended reorganisation on administrative convenience rather than language. The JVP Committee (1948-49) - Jawaharlal Nehru, Vallabhbhai Patel and Pattabhi Sitaramayya - formally rejected language as the decisive principle.

[FACT] Events then outran the initial caution. After Potti Sriramulu's death following a prolonged fast, Andhra State was created in 1953 out of the Telugu-speaking areas of Madras. It was the first major linguistic State.

[FACT] The Fazl Ali / States Reorganisation Commission (1953-55) broadly accepted language as a basis but rejected the slogan "one language, one State". It emphasised four balancing considerations: national unity and security, linguistic-cultural homogeneity, financial-economic-administrative viability, and public welfare.

[FACT] The States Reorganisation Act, 1956 and the Seventh Amendment abolished the old Part A/B/C/D classification and created 14 States and 6 Union Territories on 1 November 1956.

The 14 States: Andhra Pradesh, Assam, Bihar, Bombay, Jammu and Kashmir, Kerala, Madhya Pradesh, Madras, Mysore, Orissa, Punjab, Rajasthan, Uttar Pradesh and West Bengal.

The 6 Union Territories: Andaman and Nicobar Islands, Delhi, Himachal Pradesh, Laccadive-Minicoy-Amindivi Islands, Manipur and Tripura.

Major 1956 territorial effects

- Kerala combined Travancore-Cochin, Malabar and Kasaragod.
- Andhra State combined with the Telugu-speaking part of Hyderabad to form Andhra Pradesh.
- Madhya Bharat, Vindhya Pradesh and Bhopal were consolidated into Madhya Pradesh.
- Saurashtra and Kutch were merged into Bombay.
- Coorg was merged into Mysore.
- PEPSU was merged into Punjab.
- Ajmer was merged into Rajasthan.
- Laccadive, Minicoy and Amindivi Islands became a Union Territory.

[ANALYSIS] Linguistic reorganisation is one of the strongest answers to the claim that a strong Union must suppress regional identity. In India, the same constitutional order absorbed identity by redrawing units rather than denying its existence.

[LIMIT] Do not simplify the story into language alone. The SRC explicitly refused one language-one State and treated viability and unity as equally important.

UPSC trap: Fazl Ali endorsed a pure language test. Correct approach: language mattered, but not as an exclusive or mechanical rule.

11. After 1956: State creation, renaming and the route to 28 States and 8 Union Territories

POLITY 05 | UNION AND TERRITORY

State creation after 1956: the high-yield sequence



High-yield chronology from 1956 to the present position.

Year	Change	High-yield note
1960	Maharashtra and Gujarat	Bombay split; Gujarat became the 15th State

Year	Change	High-yield note
1963	Nagaland	16th State, carved from Assam's Naga Hills-Tuensang area
1966	Haryana + UT Chandigarh; hill areas to Himachal Pradesh	Punjab reorganisation
1971	Himachal Pradesh	UT to State
1972	Manipur, Tripura and Meghalaya became States; Mizoram and Arunachal became UTs	North-East reorganisation
1974	Sikkim received associate-State status	35th Amendment inserted Article 2A and a Tenth Schedule, both later repealed
1975	Sikkim became full State	36th Amendment; Article 371F special provisions
1987	Mizoram, Arunachal Pradesh and Goa became States	Goa separated from Goa, Daman and Diu UT
2000	Chhattisgarh, Uttarakhand and Jharkhand	Smaller-State phase
2014	Telangana	Carved out of Andhra Pradesh
2019	Jammu and Kashmir reorganised into the UT of J&K and the UT of Ladakh	Current chapter's most recent major territorial shock
2020	Dadra and Nagar Haveli merged with Daman and Diu, effective 26 January	Reduced UT count from 9 to 8

[FACT] Several renamings are also exam-worthy: United Provinces to Uttar Pradesh (1950), Madras to Tamil Nadu (1969), Mysore to Karnataka (1973), Laccadive-Minicoy-Amindivi Islands to Lakshadweep (1973), Uttaranchal to Uttarakhand (2006), Pondicherry to Puducherry (2006), and Orissa to Odisha (2011).

[FACT] Sikkim deserves separate attention. It first became an associate State through the 35th Amendment and Article 2A / Tenth Schedule arrangement, then a full-fledged State through the 36th Amendment, which also inserted Article 371F.

Territorial incorporation	Constitutional step
Dadra and Nagar Haveli	Tenth Amendment, 1961
Goa, Daman and Diu	Twelfth Amendment, 1962
Puducherry	Fourteenth Amendment, 1962

[FACT] The 2019 J&K reorganisation produced 28 States and 9 UTs. The 2020 DNH-DD merger changed only the UT count, producing the present **28 States and 8 UTs**.

[ANALYSIS] Reorganisation after 1956 proves that Article 3 is not a one-time linguistic device. It has remained the constitutional valve through which regional demands, administrative feasibility, insurgency settlements and federal adjustments have been processed.

12. Article 3's State-UT consultation nuance

Article 3 nuance: State and Union Territory

CLAUSES (a) TO (e)

Explanation I: "State" includes a Union Territory.

Parliament may form or alter a State / UT through the operative clauses.

Explanation II expands clause (a): parts of a State or UT may be united.

THE PROVISO

For consultation, "State" does NOT include a Union Territory.

A State legislature receives the Bill for views.

A UT legislature, if any, has no constitutional right to this reference.

Same word; different reach because the Constitution itself explains it.

Article 3 treats Union Territories differently in the operative clauses and the consultation proviso.

[FACT] Explanation I says that "State" includes a Union Territory for clauses (a) to (e), but does not include a Union Territory in the proviso.

[FACT] Explanation II says the clause (a) power includes forming a new State or UT by uniting part of any State or UT to any other State or UT.

Situation	Constitutional result
Proposal affects a State's area, boundary or name	President refers the Bill to that State legislature for views
Proposal affects a UT	Article 3 gives no equivalent proviso-based right of reference
A UT happens to have a legislature	That does not convert it into a "State" for the proviso

[ANALYSIS] The operative power is wide; the consultation safeguard is narrower. This is a favourite close-option trap and also explains why UT-linked reorganisation is textually easier for Parliament than State-boundary revision.

[LIMIT] The presence of a UT legislature does not convert that territory into a "State" for the purposes of the Article 3 proviso.

13. J&K reorganisation as an Article 3 illustration

JAMMU AND KASHMIR

MHA still identifies Jammu and Kashmir as a Union Territory with Legislature.
 Supreme Court (2023): restoration of statehood at the earliest and as soon as possible.
 Assurance / direction is not itself a restoring Article 3 law.
 Exam status: statehood NOT legally restored as checked on 15 Aug 2026.

LADAKH

MHA identifies Ladakh as a Union Territory without Legislature.
 PIB (24 Sep 2025) recorded Sixth Schedule and statehood demands within official dialogue.
 PIB (14 Mar 2026) said constitutional safeguards remained under engagement.
 Demand is not law; no status change is inferred.

NEVER WRITE: promised statehood = restored statehood

Current-law control on Jammu and Kashmir and Ladakh.

[FACT] The Jammu and Kashmir Reorganisation Act, 2019 took effect on 31 October 2019 and created the UT of Jammu and Kashmir with a legislature and the UT of Ladakh without one.

[FACT] The J&K Legislative Assembly is a statutory Union-Territory legislature. Its competence excludes public order and police; unlike Delhi, land is not one of the excluded subjects. Parliament nevertheless retains plenary power to legislate for the Union Territory.

[FACT] In *In Re Article 370* (11 December 2023), the Supreme Court held that:

- the State legislature's views under the first proviso to Article 3 are recommendatory;
- carving out Ladakh as a UT was valid under Article 3(a) read with Explanation I;
- because the Solicitor General stated that J&K Statehood would be restored, the Court found it unnecessary to determine whether converting the entire State into the two UTs was permissible under Article 3; and
- restoration of Statehood should take place "at the earliest and as soon as possible."

[FACT] Justice Sanjiv Khanna's concurrence stressed that State-to-UT conversion has grave federal consequences and must rest on strong grounds and strict Article 3 compliance.

[CURRENT STATUS] The MHA page checked on 15 August 2026 still described J&K as a UT with Legislature and Ladakh as a UT without Legislature. **J&K Statehood had not been legally restored.**

[LIMIT] Do not use the 2023 judgment as a general final approval of every whole-State-to-UT conversion. The case settles parts of the 2019 arrangement, but not every future State-to-UT downgrading controversy.

14. Current demands for new or smaller States

Demand type	Illustrative claims	Governance question
Identity and culture	Gorkhaland and other recurring subregional claims	Can autonomy protect identity without a new State?
Administrative distance	Bundelkhand-type claims	Will a smaller capital distance improve capacity?
Developmental imbalance	Vidarbha-type claims	Is underdevelopment caused by size or by policy and institutions?
Restoration/status upgrade	J&K Statehood; Ladakh Statehood demand	What federal, security, minority and transition safeguards are needed?

[FACT] PIB's MHA release of 24 September 2025 expressly recorded Ladakh Statehood and Sixth-Schedule demands within official dialogue. PIB's 14 March 2026 release recorded continuing engagement on safeguards; neither announced a territorial-status change.

[ANALYSIS] Test every demand against:

1. democratic support across affected districts and communities;
2. administrative accessibility;
3. fiscal and revenue viability;
4. division of assets, debt, water, power, employees and institutions;
5. capital and transition cost;
6. minority protection inside the proposed State;
7. inter-State and national-security effects; and
8. whether devolution or autonomy could solve the grievance at lower cost.

Qualified verdict: smaller is not automatically better. Statehood can improve representation and focus, but without capacity and negotiated transition it can merely relocate conflict.

15. Federalism, democratic consent, regionalism and territorial integrity

POLITY 05 | UNION AND TERRITORY

Article 3 and federalism: critique, reply, verdict

FEDERAL CRITIQUE

- X No state veto over its own existence
- X UT receives no consultation right
- X Centre may exploit partisan asymmetry
- X Trust deficit can outlast legal validity

UNION REPLY

- + Union is not a compact of sovereign States
- + Flexible borders absorbed identity demands
- + National integrity needs a final authority
- + Parliament remains politically accountable

QUALIFIED VERDICT: legally unilateral; democratically best used through negotiation.

Article 3's democratic dilemma: necessary flexibility or centralising overreach?

[FACT] The territorial chapter gives Parliament unusual constitutional power over the internal map. No comparable State veto exists, and Article 4 deliberately keeps ordinary reorganisation outside Article 368.

[ANALYSIS] The usual defence is nation-preserving flexibility. In a socially and linguistically plural polity, the Union must be able to respond to regional demands, insurgency settlements, administrative unviability and capital-area complexity without constitutional paralysis.

[ANALYSIS] The usual criticism is democratic-consent deficit. Because affected States cannot stop reorganisation, and because UT downgrades sharpen central control, Article 3 can look like consultation stripped of bargaining power.

[FACT] Linguistic reorganisation is the strongest evidence for the defence. Instead of fragmenting the Union, it largely absorbed regional identity inside the constitutional order.

[FACT] State of West Bengal v Union of India (1963) supplies a judicial anchor for the strong-Centre reading; S.R. Bommai (1994), though belonging to another topic, supplies the counter-reminder that federalism remains a basic feature.

[ANALYSIS] The best verdict is therefore graded. India is not a compact federation, but neither is Article 3 merely a tool of arbitrary centralism. It is a centralising safety valve whose democratic legitimacy rises or falls with political consultation, timing, transparency and accommodation.

[LIMIT] Current debates on Statehood, Sixth Schedule demands, delimitation or smaller-State proposals must not be treated as law until backed by enacted text or official notification.

16. Current-status dashboard as of 15 Aug 2026

Current issue	Safe status statement	Source discipline
Number of States/UTs	India has 28 States and 8 UTs after the 2020 merger of Dadra and Nagar Haveli with Daman and Diu	First Schedule/reorganisation chronology + MHA current description
J&K Statehood	Not restored as of 15 Aug 2026; J&K remains a UT with Legislature	MHA J&K and Ladakh Affairs page, last updated 5 Mar 2026 and checked 15 Aug 2026
Ladakh	UT without Legislature; Statehood/Sixth-Schedule demands remain proposals under dialogue	PIB releases dated 24 Sep 2025 and 14 Mar 2026
New reorganisation	No enacted status change used in this package after the 2020 UT merger	Proposals and demands are not treated as law

[ANALYSIS] These live-status notes are deliberately narrow. They are included only where constitutional position and current legal status intersect. The package does not manufacture current affairs where stable constitutional doctrine is enough.

17. GS-II answer architecture: the fastest reliable route from provision to verdict

Demand family	Best opening thesis	Evidence core
Why India is a Union of States	The Union is constitutionally prior to State boundaries	Article 1 + Ambedkar explanation + Article 3
Article 3 and State consent	India gives consultation, not consent	President's recommendation, State-legislature reference, non-binding views, Article 4
Cession vs boundary settlement	Internal readjustment and transfer of sovereignty are constitutionally distinct	Berubari, Ninth Amendment, 1969 distinction, 100th Amendment
Linguistic reorganisation	Accommodation strengthened the Union more than it weakened it	Dhar, JVP, Andhra, SRC, 1956
J&K 2019	Ladakh carving was upheld; the whole-State-to-UT question was not finally resolved	Reorganisation Act + 2023 INSC 1058 + current MHA status
Smaller-State demand	Statehood is an instrument, not an automatic cure	viability, assets, minorities, democratic support and transition

[FACT] The safest 10-marker structure is provision -> mechanism -> one named case -> verdict. The safest 15-marker structure is thesis -> provision -> mechanism -> case law -> one balance paragraph -> verdict. The safest 20-marker structure adds history, critique and current-status caution.

[ANALYSIS] The main mark-loss in this topic is category confusion: Union versus Territory, Article 2 versus 3, reorganisation versus cession, State legislature versus UT legislature, and constitutional text versus political promise.

Prelims traps to recite before any objective question: Article 2 is not Article 3; State consent is not mandatory; a UT has no proviso consultation right; Article 4 keeps internal reorganisation outside Article 368; cession requires Article 368; the current count is 28 States and 8 UTs.

PART II - Optional Advanced depth and future-question readiness

A. Explanation I is a favourite close-option trap. In Article 3, 'State' includes Union Territories for clauses (a) to (e), but not for the proviso requiring reference to a State legislature. This is why Parliament may restructure UTs without a comparable constitutionally mandated consultation step.

B. The First Schedule and Fourth Schedule do different jobs. The First Schedule tracks territorial units; the Fourth Schedule tracks Rajya Sabha seat allocation. Article 4 lets a reorganisation law adjust both together.

C. Ordinary law is not a lesser constitutional act in this chapter. An Article 3 law is ordinary in voting threshold, but constitutional in subject matter. That is why it can lawfully redraw the map while still remaining outside Article 368.

D. Berubari is not just a territorial case. It also teaches exam method: identify whether the question is about internal diminution, cession, or interpretive use of a case in another topic such as the Preamble.

E. West Bengal is about constitutional status, not map procedure. Use it to show that States are not classical sovereigns; do not use it to answer the cession route or Article 3 procedure.

F. J&K current status must be written in two layers. Layer one is operative law: UT with Legislature. Layer two is political-constitutional promise and judicial direction: Statehood restoration at the earliest, still legally pending on the 15 Aug 2026 check.

G. The whole-State-to-UT issue remains qualified. The 2023 judgment upheld carving out Ladakh but did not finally decide the broader conversion issue because of the restoration assurance.

H. Linguistic reorganisation was not a surrender to separatism. The 1956 settlement shows that territorial flexibility can be a nation-building tool.

I. Renaming is constitutionally small but exam-relevant. Article 3(e) handles both major territorial restructuring and nomenclature changes.

J. Current demands are not current law. A memorandum, protest, committee dialogue, assurance or Bill does not change the First Schedule.

K. Viability must accompany identity. Fiscal capacity, assets, water, minorities and transition institutions decide whether a smaller State can govern.

L. Current affairs should update status, not replace doctrine. The stable core remains Articles 1-4; Polity 25 owns Articles 239-241. Live sources here only refresh the 28/8 count, J&K restoration status and current Statehood demands.

Solved topic-specific MCQs

PYQ 1. Prelims 2025, GS Paper I, Question 52 - verbatim-verified with official UPSC key

Consider the following pairs:

State	Description
I. Arunachal Pradesh	The capital is named after a fort, and the State has two National Parks
II. Nagaland	The State came into existence on the basis of a Constitutional Amendment Act
III. Tripura	Initially a Part 'C' State, it became a centrally administered territory with the reorganization of States in 1956 and later attained the status of a full-fledged State

How many of the above pairs are correctly matched?

(a) Only one (b) Only two (c) All the three (d) None

Official answer: (c) All the three.

- Pair I is correct: Itanagar is named after Ita Fort, and Arunachal Pradesh has Namdapha and Mouling National Parks.
- Pair II is accepted as correct by the official UPSC key. Nagaland's Statehood settlement combined the State of Nagaland Act, 1962 with the Constitution (Thirteenth Amendment) Act, 1962, which inserted Article 371A.

- Pair III is correct: Tripura was a Part C unit, became a UT in the 1956 arrangement and attained Statehood in 1972.

Why this earns marks: it follows the official key and explains why the ordinary Statehood Act and the accompanying constitutional amendment are not mutually exclusive.

PYQ 2. Mains 2018, GS Paper I, Question 12 - audited routing-ledger neutral rendering

Question: Discuss whether the formation of new States in recent times has been beneficial for India's economy. (15 marks, 250 words)

Model solution. [CLAIM] State creation changes the scale and incentives of government, but economic gains depend on capacity and transition quality rather than size alone. [EVIDENCE] Chhattisgarh brought government closer to a large tribal-mineral region; Uttarakhand could focus on mountain infrastructure and tourism; Jharkhand gained a distinct budgetary platform; Telangana obtained a separate policy arena in 2014. [ANALYSIS] These changes can improve problem recognition, policy focus and accountability. [QUALIFICATION] Statehood did not automatically cure Jharkhand's institutional instability; Uttarakhand faces ecological costs; Andhra-Telangana division generated capital, asset, institution and river-water disputes. New capitals and cadres impose fixed costs, while weak revenue capacity can deepen grant dependence. [VERDICT] New States are economically beneficial when they correct administrative neglect and are backed by viable finances, accountable institutions and negotiated asset division. **Why this earns marks:** it answers the economic test, uses four named examples, links evidence to mechanisms and qualifies every gain.

PYQ 3. Mains 2022, GS Paper I, Question 11 - audited routing-ledger neutral rendering

Question: The political and administrative reorganisation of States and territories has been a continuous process since the mid-nineteenth century. Discuss with examples. (15 marks, 250 words)

Model solution. [CLAIM] India's map is a continuing process shaped by colonial administration, integration, linguistic accommodation and later identity-development claims. [EVIDENCE] Colonial Bengal's partition and reunification showed the political effects of administrative boundaries. After 1947, accession and merger integrated princely States; Hyderabad, Junagadh and J&K illustrate distinct routes. [EVIDENCE] The 1950 Part A/B/C/D map was transitional. Andhra in 1953 forced language onto the agenda; Fazl Ali's qualified principle produced the 1956 Act and Seventh Amendment. [EVIDENCE] Maharashtra-Gujarat, Nagaland, Haryana, the northeast changes, the three States of 2000, Telangana and the 2019 J&K-Ladakh reorganisation show motives ranging from language and ethnicity to peace, administration, development and security. [VERDICT] Article 3 keeps the map flexible while Article 1 keeps the Union indestructible; legitimacy nevertheless requires consultation, viability and minority safeguards. **Why this earns marks:** it follows chronology, uses named commissions/examples and converts narrative into constitutional explanation.

PYQ scope note

The 2025 GS-II question on detailed J&K Assembly powers belongs to Polity 25 - Union Territories and is intentionally not duplicated here.

Broad topic-coverage MCQs

Q1. Article 1(1) primarily settles which two issues together?

- A. The country's name and the type of polity
- B. The capital city and the official language
- C. The citizenship rules and the anthem
- D. The emergency powers and amendment process

Answer: A. Article 1(1) gives both the name - India, that is Bharat - and the formula 'Union of States'.

Q2. Which statement best captures the difference between the Union of India and the Territory of India?

- A. The Union of India includes only Parliament, while the Territory of India includes Parliament and the States
- B. The Union of India refers to the States as federal members, while the Territory of India also includes Union Territories and acquired territories
- C. The Union of India means the Union executive, while the Territory of India means the Union judiciary

- D. The two expressions are exact constitutional synonyms

Answer: B. This distinction flows directly from Article 1 and is one of the most examinable definitions in the chapter.

Q3. Article 2 is conceptually different from Article 3 because Article 2 deals with

- A. renaming existing States
- B. creation of legislative councils in States
- C. admission into the Union or establishment of new States not already part of the existing Union
- D. cession of Indian territory to a foreign State

Answer: C. Article 3 handles internal reorganisation of existing units; Article 2 is the external-admission clause.

Q4. Which one of the following is NOT one of the express Article 3 operations?

- A. Increasing the area of a State
- B. Altering the name of a State
- C. Altering the boundaries of a State
- D. Ceding accepted Indian territory to a foreign State

Answer: D. Cession is outside Article 3 after Berubari; the other three are expressly listed in clauses (b), (e) and (d).

Q5. Before an Article 3 bill is introduced in Parliament, what is constitutionally necessary?

- A. The prior recommendation of the President
- B. Prior ratification by at least half the States
- C. A joint sitting of both Houses
- D. Approval by the Supreme Court under Article 143

Answer: A. The bill cannot even be introduced without the President's recommendation.

Q6. The legislature of the affected State, when consulted under Article 3, has

- A. a suspensive veto that can be overridden only in a joint sitting
- B. a right to express its views, but no veto over Parliament's final decision
- C. a binding veto unless the Supreme Court permits otherwise
- D. a co-equal decision-making role with Parliament

Answer: B. Article 3 requires consultation, not consent.

Q7. Explanation I to Article 3 matters because it states that

- A. Union Territories are treated as States for all constitutional purposes
- B. States and UTs have identical representation in Rajya Sabha
- C. for clauses (a) to (e), 'State' includes a Union Territory, but not in the proviso requiring legislature-reference
- D. the President may abolish a State by ordinance

Answer: C. This is a close-option trap: inclusion applies to clauses (a)-(e), not fully to the proviso.

Q8. Article 4 keeps reorganisation laws outside Article 368 because such laws are

- A. automatically approved by the Supreme Court
- B. valid only for five years unless renewed
- C. treated as Money Bills
- D. not deemed constitutional amendments for the purposes of Article 368

Answer: D. Article 4(2) expressly says so.

Q9. The First Schedule is constitutionally important because it

- A. lists the States and Union Territories and their territorial extent
- B. contains the amendment procedure

- C. allocates Lok Sabha seats among constituencies
- D. lists the official languages of every State

Answer: A. Territorial and nomenclature changes must be reflected in the First Schedule.

Q10. Which one of the following most accurately states Berubari Union (1960)?

- A. Any change in a State boundary requires prior consent of that State
- B. Cession of accepted Indian territory to a foreign State requires a constitutional amendment
- C. No Indian territory can ever be ceded under the Constitution
- D. Parliament cannot alter a State's name without Article 368

Answer: B. Berubari did not ban cession; it fixed the route - Article 368, not Article 3.

Q11. The Supreme Court's 1969 boundary-settlement ruling is mainly remembered for holding that

- A. every international boundary issue must be referred under Article 143
- B. the Union cannot acquire State property
- C. boundary settlement or ascertainment without cession does not automatically require Article 368
- D. Article 3 and Article 4 are unconstitutional

Answer: C. The case distinguishes boundary implementation from surrender of sovereignty.

Q12. Which constitutional amendment implemented the India-Bangladesh enclave exchange and related territorial adjustments?

- A. The Ninth Constitutional Amendment Act, 1960
- B. The Seventh Constitutional Amendment Act, 1956
- C. The Thirty-Sixth Constitutional Amendment Act, 1975
- D. The 100th Constitutional Amendment Act, 2015

Answer: D. The 100th Amendment gave effect to the Land Boundary Agreement and its protocol.

Q13. Which sequence is correct for the linguistic-reorganisation debate?

- A. Dhar Commission -> JVP Committee -> Andhra State -> Fazl Ali / SRC -> States Reorganisation Act
- B. JVP Committee -> Dhar Commission -> Fazl Ali / SRC -> Andhra State -> Seventh Amendment
- C. Andhra State -> Dhar Commission -> JVP Committee -> Fazl Ali / SRC -> States Reorganisation Act
- D. Fazl Ali / SRC -> Dhar Commission -> JVP Committee -> Andhra State -> States Reorganisation Act

Answer: A. Chronology is often more important than slogans in this topic.

Q14. What was the decisive political trigger for the creation of Andhra State in 1953?

- A. A Presidential reference under Article 143
- B. The prolonged fast and death of Potti Sriramulu
- C. The demand of the JVP Committee
- D. The Ninth Amendment Act

Answer: B. Andhra is the first major linguistic-State milestone.

Q15. The States Reorganisation Act, 1956 together with the Seventh Amendment created

- A. 16 States and 3 Union Territories exactly as originally recommended by the SRC
- B. 28 States and 8 Union Territories
- C. 14 States and 6 Union Territories
- D. 15 States and 5 Union Territories

Answer: C. The government modified the SRC's exact recommendation, but the enacted 1956 outcome was 14 and 6.

Q16. Which one of the following pairs is correctly matched?

- A. Nagaland - Statehood through the Ninth Amendment

- B. Goa - Statehood through the 100th Amendment
- C. Telangana - created by the Seventh Amendment
- D. Sikkim - full Statehood through the 36th Amendment after the brief associate-State experiment

Answer: D. Sikkim's path is constitutionally distinctive and therefore high-yield.

Q17. The present practical count of Union Territories as of 15 Aug 2026 is

- A. 8
- B. 6
- C. 7
- D. 9

Answer: A. The count fell from 9 to 8 after the 2020 DNH-Daman and Diu merger.

Q18. Which sequence of Statehood is correct?

- A. Arunachal Pradesh 1963; Nagaland 1972; Tripura 1987
- B. Nagaland 1963; Tripura 1972; Arunachal Pradesh 1987
- C. Tripura 1963; Arunachal Pradesh 1972; Nagaland 1987
- D. Nagaland, Tripura and Arunachal Pradesh all in 1972

Answer: B. This is the chronology behind Prelims 2025 Q52.

Q19. Which one of the following correctly describes the 1950 map?

- A. Manipur and Tripura were Part B States
- B. Delhi was the sole Part D territory
- C. Part A had 9 units, Part B 9, Part C 10, and Andaman and Nicobar Islands alone formed Part D
- D. Hyderabad was a Part A State

Answer: C. Part C included Delhi, Himachal Pradesh, Manipur and Tripura; Hyderabad was Part B.

Q20. Sikkim's constitutional sequence was

- A. full Statehood in 1974 followed by associate status in 1975
- B. UT status under the Seventh Amendment followed by Article 3 Statehood
- C. associate status under the 36th Amendment followed by Statehood under the 35th
- D. associate-State status through the 35th Amendment in 1974, followed by full Statehood through the 36th Amendment in 1975

Answer: D. Article 2A and the old Tenth Schedule marked the brief associate phase.

Q21. With reference to the India-Bangladesh Land Boundary Agreement, which is correct?

- A. The 100th Amendment implemented an exchange in which India transferred 111 enclaves and received 51
- B. India transferred 51 enclaves and received 111 under the Ninth Amendment alone
- C. The First Schedule did not require amendment
- D. Only West Bengal's territorial entry was affected

Answer: A. Assam, West Bengal, Meghalaya and Tripura were affected.

Q22. As verified on 15 August 2026, the correct J&K position is

- A. Statehood was automatically restored by the 2023 judgment
- B. J&K remains a UT with Legislature; restoration was directed and assured but had not been legally completed
- C. J&K and Ladakh have recombined into a State
- D. Ladakh is a State without Legislature

Answer: B. MHA's current official page continues to describe both as UTs.

Q23. In the 2023 Article 370 judgment, the Supreme Court

- A. held every whole-State-to-UT conversion valid

- B. restored J&K Statehood with immediate effect
- C. upheld carving out Ladakh, treated State views as recommendatory, but did not finally decide the broader whole-State-to-UT issue because of the restoration assurance
- D. held Article 3 inapplicable to Union Territories

Answer: C. This qualified holding is safer than claiming a universal power was conclusively approved.

Q24. Which criterion set is most defensible for evaluating a smaller-State demand?

- A. Population and language alone
- B. Political mobilisation alone
- C. Consent of the parent State alone
- D. Administrative access, fiscal viability, transition costs, resource division, minority safeguards, democratic support and inter-State effects

Answer: D. Statehood is a multi-dimensional governance decision.

Q25. Which one of the following is correctly matched?

- A. United Provinces -> Uttar Pradesh, 1950
- B. Mysore -> Tamil Nadu, 1973
- C. Orissa -> Odisha, 2000
- D. Pondicherry -> Lakshadweep, 2006

Answer: A. Mysore became Karnataka; Orissa became Odisha in 2011; Pondicherry became Puducherry.

Q26. The enacted result of the 1956 settlement was

- A. 16 States and 3 UTs
- B. 14 States and 6 UTs
- C. 28 States and 8 UTs
- D. 9 Part A and 9 Part B States

Answer: B. The Commission's proposed map and the enacted outcome must not be conflated.

Q27. Which statement is correct about Ladakh's current demand?

- A. Statehood was granted by the PIB release of September 2025
- B. Sixth Schedule status automatically followed the 2025 regulations
- C. Official PIB releases recorded Statehood/Sixth-Schedule demands and continuing safeguard dialogue, but no territorial-status change
- D. Ladakh became a State through the 100th Amendment

Answer: C. Demand, dialogue and enacted law are distinct.

Q28. Which statement best explains why Article 3 is often cited as proof of India's strong-Centre bias?

- A. States cannot legislate on the Concurrent List
- B. every State law needs Presidential approval
- C. Rajya Sabha seats are equal across States
- D. Parliament may reorganise States without needing their consent

Answer: D. Article 3 is among the clearest textual examples of centre-weighted federalism.

Remedial MCQs for recurring traps

Q29. A student writes that every change in a State's boundary requires Article 368 because the First Schedule changes. Which correction is most accurate?

- A. Article 4 itself allows First Schedule changes within an Article 3 law, so Article 368 is not normally needed
- B. The First Schedule can never be changed
- C. First Schedule changes are done only by executive notification
- D. Rajya Sabha approval replaces Parliament's ordinary law-making process

Answer: A. This remedial question targets the First-Schedule-amendment trap.

Q30. A candidate uses Article 2 for the creation of Telangana. What is the best correction?

- A. Article 2 applies because Telangana had a separate movement
- B. Telangana was formed from an existing State, so Article 3 was the relevant territorial power
- C. Article 368 alone applies whenever a new State is created
- D. Article 1 alone authorises State creation

Answer: B. Political novelty does not make the territory external to the existing Union.

Q31. A candidate writes the current count as 28 States and 9 UTs. The correction is

- A. 29 States and 8 UTs
- B. 27 States and 9 UTs
- C. 28 States and 8 UTs after the 2020 DNH-DD merger
- D. 28 States and 7 UTs

Answer: C. The State count stayed 28; the UT count fell by one.

Q32. A student confuses Berubari with the Supreme Court's 1969 boundary-settlement principle. Which contrast is right?

- A. Berubari is a State-creation case; the 1969 principle is a renaming rule
- B. Berubari authorises cession by executive order; the 1969 principle bars every boundary agreement
- C. Berubari and the 1969 principle both say Article 3 is enough for cession
- D. Berubari deals with cession of accepted Indian territory; the 1969 principle deals with boundary settlement without such cession

Answer: D. This remedial item repairs the most common case-law mix-up in the topic.

Q33. Which correction best answers the statement 'State consent is mandatory under Article 3'?

- A. Only the State legislature's views are sought; Parliament is not bound by them
- B. Consent is mandatory unless the State is bilingual
- C. Consent is mandatory only for name changes
- D. Consent is mandatory for Article 3 but not for Article 2

Answer: A. This is the central remedial trap of the chapter.

Q34. A candidate writes that the 1956 settlement created 16 States and 3 UTs. The enacted result was

- A. 15 States and 7 UTs
- B. 14 States and 6 UTs
- C. 28 States and 8 UTs
- D. 9 Part A and 9 Part B States

Answer: B. The SRC recommendation and the enacted map were not identical.

Q35. A candidate solves Prelims 2025 Q52 as "only two pairs" by treating the Nagaland statement as false. The correction is

- A. Pair I alone was correct
- B. The question was dropped
- C. The official UPSC key is C, all three pairs; Nagaland's settlement involved both the State of Nagaland Act and the Thirteenth Amendment
- D. Tripura was never a Part C unit

Answer: C. Official-key control overrides an incomplete one-statute elimination.

Q36. Which is the best present-tense statement on J&K as of 15 Aug 2026?

- A. J&K has already regained full Statehood
- B. J&K has no legislature at all

- C. J&K and Ladakh have both become States
- D. J&K remains a Union Territory with a legislature; Statehood restoration has not been officially completed in the accessible source sweep

Answer: D. The package deliberately uses the narrow, source-safe current-status formulation.

Solved Mains practice

Original 10-marker 1: Distinguish the 'Territory of India' from the 'Union of India'. Why does the distinction matter?

Model answer. [CLAIM] The two expressions are related but not identical. [EVIDENCE] Article 1 and standard polity doctrine treat the Union of India as the States taken as federal members, whereas the Territory of India includes the territories of the States, the Union Territories, and such territories as may be acquired. [MECHANISM] This matters because States share constitutionally distributed powers with the Union, while Union Territories are centrally administered units under Articles 239-241 and acquired territories may await internal constitutional placement. [ANALYSIS] The distinction explains why a UT belongs to India without becoming a full federal partner, and why the First Schedule can list both States and UTs while still preserving their unequal constitutional status. [LIMIT] The distinction is structural, not emotional; one should not collapse sovereignty with federal membership. [VERDICT] The Union of India is the federation's membership core; the Territory of India is the wider constitutional space over which Indian sovereignty extends. **Why this earns marks:** it defines both expressions, links them to operative constitutional consequences, and avoids the common synonym trap.

Original 10-marker 2: Distinguish cession of Indian territory from settlement of a boundary dispute.

Model answer. [CLAIM] The Constitution treats cession and boundary settlement differently because only the former parts with accepted sovereign territory. [EVIDENCE] *Berubari Union* (1960) held that ceding accepted Indian territory to a foreign State cannot be done under Article 3 and requires constitutional amendment under Article 368. [MECHANISM] Cession changes the sovereign content of the Constitution's territorial ledger. By contrast, the Supreme Court's later 1969 ruling held that where the issue is ascertainment or implementation of an existing disputed boundary, and not transfer of accepted Indian territory, executive action need not be preceded by Article 368. [ANALYSIS] The test is not whether another country is involved, but whether India is surrendering what it accepts as its own territory. [LIMIT] A boundary-settlement label cannot disguise actual cession. [VERDICT] Cession changes sovereignty and needs amendment; boundary settlement clarifies or implements an existing line and need not. **Why this earns marks:** it identifies the controlling test, uses the safely verified case/principle and converts the distinction into a usable constitutional rule.

Original 15-marker 1: 'India is an indestructible Union of destructible States.' Examine with special reference to Article 3.

Model answer. [CLAIM] The phrase captures the asymmetry built into Indian federalism: the Union's continuity is entrenched, but State boundaries are not. [EVIDENCE] Article 1 names India a Union of States, while Article 3 empowers Parliament to form new States, increase or diminish their area, alter boundaries and alter names. [MECHANISM] An Article 3 bill requires the President's prior recommendation and reference to the affected State legislature for views, but those views are non-binding. Article 4 then keeps the reorganisation law outside Article 368, allowing ordinary-majority change. [ANALYSIS] This makes the Indian federation unlike a compact federation such as the United States, where State consent is structurally stronger. Yet the same flexibility enabled linguistic reorganisation, small-State creation and administrative adaptation without constitutional deadlock. [EVIDENCE] Andhra (1953), the 1956 settlement, and later creations such as Chhattisgarh, Jharkhand and Telangana show the practical utility of this power. [LIMIT] The design can create a democratic-consent deficit when major territorial change proceeds over sharp regional opposition. [VERDICT] India is indestructible because no State can claim a right to continued boundaries or secession; the States are destructible only in the constitutional sense that Parliament may reorganise them, not in the sense of lawless central arbitrariness. **Why this earns marks:** it ties the famous formula to the exact procedural mechanics of Article 3 and balances national flexibility with federal criticism.

Original 15-marker 2: Demands for smaller States should be decided through governance criteria, not identity alone. Discuss.

Model answer. [CLAIM] Identity can establish democratic urgency, but it cannot by itself prove that a new State will govern better. [EVIDENCE] Uttarakhand, Chhattisgarh and Jharkhand were created in 2000 to address distinct regional geographies and developmental claims; Telangana followed in 2014 after sustained regional mobilisation. [ANALYSIS] Smaller units may improve administrative access, policy focus and accountability. [QUALIFICATION] Statehood also creates new capital, cadre and institutional costs; weak revenue bases can deepen grant dependence; water, power, debt and assets can generate inter-State disputes; and a new regional majority may create a new minority. Jharkhand's institutional instability and Andhra-Telangana transition disputes show that Statehood is not a self-executing development policy. [CURRENT EVIDENCE] J&K restoration and Ladakh Statehood demands further require federal, security and minority safeguards; neither demand had changed legal status on 15 Aug 2026. [VERDICT] Parliament should use Article 3 after transparent viability studies, broad consultation and negotiated transition, treating Statehood as a governance instrument rather than a reward for mobilisation. **Why this earns marks:** it uses four named examples, connects each claim to a mechanism, includes present debates and supplies operational decision criteria.

Original 20-marker 1: Linguistic reorganisation strengthened rather than weakened the Indian Union. Critically examine.

Model answer. [CLAIM] Linguistic reorganisation ultimately strengthened the Indian Union because it channelled identity into constitutional politics rather than leaving it outside the system, though not without centralising tensions and new sub-regional claims. [EVIDENCE] The initial hesitation of the Dhar Commission and the JVP Committee reflected a real fear that language-based States might embolden fragmentation. The creation of Andhra in 1953 after Potti Sriramulu's death showed that these demands could not simply be suppressed. [EVIDENCE] The Fazl Ali / States Reorganisation Commission accepted language as a major organising principle but rejected one language-one State and balanced it with viability, unity and welfare. The resulting States Reorganisation Act, 1956 and Seventh Amendment restructured India without dismantling its constitutional framework. [MECHANISM] By aligning administration with language in many cases, the Union reduced alienation, improved representational legitimacy and absorbed regional mobilisation into parliamentary and electoral channels. [ANALYSIS] Later developments - Nagaland, Meghalaya, Mizoram, Goa, Telangana and smaller-State formations in 2000 - show that Article 3 remained an accommodation device, not merely a linguistic tool. [LIMIT] Reorganisation did not end regionalism; it often displaced it into fresh internal claims for smaller units, capitals or autonomous protections. Nor can every present-day demand be justified by language alone. [VERDICT] Linguistic reorganisation did not dissolve the Union; it made the Union governable by recognising identity inside the Constitution. Its success, however, depended on combining language with viability, asymmetry and central constitutional control. **Why this earns marks:** it uses chronology as argument, gives both the fear and the outcome, and converts the 1956 settlement into a broader federalism verdict.

Original 20-marker 2: Does Article 3 reconcile national unity with democratic consent, or does it privilege unity at the expense of federal trust? Critically examine.

Model answer. [CLAIM] Article 3 reconciles unity and democracy only partially: it was designed to privilege the Union's continuity, and democratic consent enters the structure as consultation rather than as a State veto.

[EVIDENCE] The President must recommend the bill and refer it to the affected State legislature for views, but Parliament is not bound by those views. Article 4 then keeps the resulting law outside Article 368, reinforcing flexibility.

[MECHANISM] This makes Article 3 a nation-preserving safety valve. The Union can respond to secessionary pressures, viability problems, linguistic claims and administrative demands without constitutional paralysis. Andhra, the 1956 settlement, State creation in 2000 and Telangana in 2014 are evidence of this accommodative capacity.

[ANALYSIS] Yet the same structure can weaken trust. If an affected State's legislature can only advise and not co-decide, consultation may appear symbolic in politically high-stakes reorganisations. The conversion of a former State into Union Territories in 2019 intensified this anxiety. [EVIDENCE] State of West Bengal v Union of India reinforces the strong-Centre reading, while the continuing democratic force of federalism is better captured by the political need for negotiated legitimacy and, in the broader constitutional order, by Bommai's basic-feature floor.

[LIMIT] A compact-federation standard is not fully appropriate for India, whose Constitution deliberately rejected a treaty-union model. [VERDICT] Article 3 does not produce symmetrical federal consent; it privileges unity structurally, but can still generate democratic legitimacy when used through negotiation, transparency and accommodation rather than through bare majoritarian power. **Why this earns marks:** it neither romanticises consent nor demonises unity, and it uses the text, history and case law to produce a graded verdict rather than a slogan.

Final consolidated register notes - Union and Territory

Articles 1-4: complete constitutional spine

Article	Recall line	Main trap
1	India, that is Bharat, is a Union of States; territory = States + UTs + acquired territory	Union of India is narrower than territory of India
2	Admit or establish a new State not already within the Union	Not internal reorganisation
3	Form, enlarge, diminish, alter boundary or rename existing units	State views are not consent; foreign cession excluded
4	Amend First/Fourth Schedules and add consequences by ordinary law	Not deemed an Article 368 amendment

Rapid thesis: the Union is indestructible; the internal map is adaptable.

India, Union and territory

- Article 1 says Union of States, not Federation of States.
- Ambedkar: no compact among sovereign States and no secession right.
- Union of India = States as federal members.
- Territory of India = States + UTs + acquired territories.
- First Schedule is the constitutional territorial ledger.
- Article 1(3)(c) accommodates acquisition but does not prescribe its international-law mode.
- Contemporary law sharply qualifies historical textbook references to conquest.

Article 2 versus Article 3

ARTICLE 2 = NEW ENTRY / ESTABLISHMENT FROM OUTSIDE THE EXISTING UNION

ARTICLE 3 = INTERNAL READJUSTMENT OF EXISTING STATES / TERRITORIES

- Telangana, Chhattisgarh, Haryana and renamings -> Article 3.
- Acquisition of sovereign title and admission as a State are distinct questions.

Article 3 procedure

1. Proposal falls within clause (a), (b), (c), (d) or (e).

2. President's recommendation before introduction.
3. Reference to affected State legislature where area, boundary or name is affected.
4. Views within specified or extended time.
5. Views are recommendatory; Parliament is not bound.
6. No fresh reference for every parliamentary amendment.
7. Passage, assent and Article 4 consequences.

Federal rule: a State has a constitutional voice, not a veto.

State and UT nuance

- Explanation I: State includes UT in clauses (a)-(e).
- Explanation I: State excludes UT in the proviso.
- A UT therefore has no Article 3 reference entitlement, even if it has a legislature.
- Explanation II: Parliament can form a State or UT by combining parts of States/UTs.
- Core UT administration for this topic: Articles 239-241, Puducherry by law, Delhi by Article 239AA/AB, and J&K as a statutory UT legislature.

Article 4 consequences

- First Schedule: names and territorial descriptions.
- Fourth Schedule: Rajya Sabha seat allocation.
- Supplemental/incidental/consequential matters: representation and transition.
- Ordinary process and simple majority of members present and voting.
- No Article 368 deeming and no State ratification requirement.

Integration of princely States

- 552 princely States within India's geographical boundaries; 549 joined.
- Hyderabad -> police action; Junagadh/Junagarh -> referendum; J&K -> Instrument of Accession.
- Patel and V.P. Menon are central figures.
- Integration established one sovereignty; reorganisation rationalised administration.

The 1950 map

Category	Number	Anchors
Part A	9	Former Governors' Provinces; Bombay, Madras, United Provinces
Part B	9	Former princely units; Hyderabad, J&K, Mysore, Rajasthan
Part C	10	Delhi, Himachal Pradesh, Manipur, Tripura among centrally administered units
Part D	1	Andaman and Nicobar Islands

Traps: Manipur/Tripura = Part C; Hyderabad = Part B; Bombay = Part A; A&N = sole Part D.

Linguistic reorganisation

- Dhar Commission, 1948 -> administrative convenience, not language.
- JVP Committee, 1948-49 -> resisted language as immediate basis.
- Andhra, October 1953 -> first linguistic State; Potti Sriramulu catalyst.
- Fazl Ali/SRC, 1953-55 -> accepted language; rejected one language-one State.
- Four tests: unity/security; linguistic-cultural homogeneity; viability; welfare/planning.
- 1956 Act + Seventh Amendment -> 14 States + 6 UTs.

Verdict: linguistic recognition strengthened unity because it was qualified by viability and national integration.

The 1956 settlement: named effects

- Kerala = Travancore-Cochin + Malabar + Kasaragod.
- Andhra Pradesh = Andhra + Telugu-speaking Hyderabad area.
- Madhya Pradesh absorbed Madhya Bharat, Vindhya Pradesh and Bhopal.
- Bombay absorbed Saurashtra and Kutch.
- Mysore absorbed Coorg.
- Punjab absorbed PEPSU.
- Rajasthan absorbed Ajmer.
- Laccadive-Minicoy-Amindivi became a UT.

State-creation chronology

Cluster	Sequence
1960s	Maharashtra/Gujarat (1960) -> Nagaland (1963) -> Haryana (1966)
1970s	Himachal (1971) -> Manipur/Tripura/Meghalaya (1972) -> Sikkim associate (1974), State (1975)
1987	Mizoram -> Arunachal Pradesh -> Goa
2000	Chhattisgarh -> Uttarakhand -> Jharkhand
Recent	Telangana (2014) -> J&K/Ladakh UTs (2019) -> DNH-DD merger (2020)

2025 Prelims triad: Nagaland 1963; Tripura 1972; Arunachal Pradesh 1987.

Renaming and incorporation

- United Provinces -> Uttar Pradesh (1950).
- Madras -> Tamil Nadu (1969).
- Mysore -> Karnataka (1973).
- Laccadive-Minicoy-Amindivi -> Lakshadweep (1973).
- Uttaranchal -> Uttarakhand (2006).
- Pondicherry -> Puducherry (2006).
- Orissa/Oriya -> Odisha/Odia (2011).
- Tenth Amendment -> Dadra and Nagar Haveli.
- Twelfth Amendment -> Goa, Daman and Diu.
- Fourteenth Amendment -> Puducherry.

Cession and boundary settlement

ACKNOWLEDGED INDIAN TERRITORY SURRENDERED?

YES -> CESSION -> ARTICLE 368

NO, ONLY TRUE DISPUTED LINE IDENTIFIED -> EXECUTIVE SETTLEMENT MAY SUFFICE

- *Berubari* (1960): Article 3 diminution does not include foreign cession.
- Ninth Amendment: constitutional route; do not claim every contemplated transfer immediately operated.
- Supreme Court 1969: genuine boundary settlement without cession need not use Article 368.
- Decisive variable = legal title and surrender of sovereignty.

India-Bangladesh LBA

- Radcliffe 1947 -> Bagge 1950 -> Nehru-Noon 1958 -> Ninth Amendment 1960.
- LBA 1974 -> Protocol 2011 -> 100th Amendment 2015.
- India transferred 111 enclaves; received 51.
- First Schedule entries: Assam, West Bengal, Meghalaya, Tripura.
- Exchange effective from midnight of 31 July 2015.

J&K 2019 and 2023 judgment

- Reorganisation effective 31 October 2019.
- J&K = UT with Legislature; Ladakh = UT without Legislature.
- State legislature's Article 3 views are recommendatory.
- Ladakh carving upheld under Article 3(a) + Explanation I.
- Whole-State-to-UT question not finally determined because Statehood restoration was assured.
- Restoration directed at the earliest and as soon as possible.
- Justice Khanna: State-to-UT conversion has grave federal consequences.

Current-law control: 15 August 2026

- MHA still identifies J&K as a UT with Legislature.
- MHA still identifies Ladakh as a UT without Legislature.
- Current count = **28 States and 8 UTs**.
- J&K Statehood = assured/directed, not legally completed.
- PIB 24 Sep 2025 recorded Ladakh Statehood/Sixth-Schedule demands in dialogue.
- PIB 14 Mar 2026 recorded continuing safeguards engagement, not a status change.
- Demand, assurance, committee dialogue and judicial direction are not enacted reorganisation.

Smaller-State evaluation

Test	Question
Democratic support	Is support broad across affected communities?
Administrative access	Will service capacity genuinely improve?
Fiscal viability	Can the proposed State sustain core expenditure?
Asset transition	How will debt, employees, water, power, institutions and capital be divided?
Minority protection	Will a new majority create a vulnerable minority?
Alternatives	Can autonomy or devolution solve the grievance at lower cost?

Verdict: Statehood is a governance instrument, not an automatic reward for mobilisation.

Federal debate

Critique	Reply	Qualified conclusion
No State veto	India is not a compact of sovereign States	Final authority is necessary; negotiated use is more legitimate
UT gets no proviso right	Flexibility permits complex territorial solutions	Political consultation should exceed the minimum
Partisan misuse is possible	Parliament remains nationally accountable	Publish criteria and viability studies
Reorganisation can create distrust	It has absorbed identity demands	Transition justice determines success

PYQ routes and last-minute traps

- Prelims 2025 GS-I Q52 -> official answer C, all three pairs.
- Mains 2018 GS-II Q11 -> Delhi Lt Governor versus elected government after the July 2018 Constitution Bench.
- Mains 2025 GS-II Q4 -> nature and powers of the J&K Legislative Assembly after the 2019 Reorganisation Act.
- Andhra 1953 = first linguistic State.
- Fazl Ali rejected one language-one State.
- 1956 = 14 States, 6 UTs.

- Sikkim: associate 1974, State 1975.
- Cession needs Article 368; genuine boundary settlement may not.
- Current count = 28 States, 8 UTs.
- J&K Statehood was not legally restored on the 15 Aug 2026 check.

Four answer spines

Article 3 federalism

Union not compact -> President recommendation -> State views, no veto
 -> Article 4 ordinary law -> centralisation critique
 -> flexibility reply -> negotiated-use verdict

Linguistic reorganisation

Dhar -> JVP -> Andhra 1953 -> Fazl Ali qualified acceptance
 -> 1956 settlement -> integration gains -> remaining disputes -> qualified success

Cession

Internal Article 3 change -> Berubari excludes cession
 -> Ninth Amendment -> 1969 boundary distinction
 -> LBA + 100th Amendment -> sovereignty-based verdict

Smaller States

Identity/development trigger -> Article 3 mechanism
 -> access/accountability gains -> fiscal/asset/minority risks
 -> current status control -> criteria-based verdict